

25STCV04929 25STCV04929

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-06-24

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Case Number: 25STCV04929 Hearing Date: June 24, 2026 Dept: 735

Bond. v. Stepping Stones Healthcare Services,

LLC, et al.

Defendant ABC Unified School District's

Demurrer to Complaint and Motion to Strike

BACKGROUND

On February 20, 2025, Plaintiff Rebecca Bond

filed a complaint against Defendants Stepping Services, LLC, The Stepping

Stones Autism Services Group, LLC, The Stepping Stones Group, LLC and ABC

Unified School District, asserting causes of action for (1) age discrimination;

(2) harassment based on age; (3) disability discrimination; (4) harassment

based on disability; (5) failure to provide accommodation; (6) failure to

engage in the interactive process; (7) failure to prevent discrimination and

harassment; (8) whistleblower retaliation; (9) retaliation in violation of Labor

Code § 6310; and (10) wrongful termination.

Plaintiff

alleges she was discriminated against based on her age and disability and terminated in retaliation for complaints about working conditions and for filing a claim for industrial injuries.

DISCUSSION

Demurrer

Defendant ABC Unified School District demurs

to the complaint on the ground that it was not Plaintiff's employer. Defendant asserts that the complaint shows Plaintiff was employed by Defendant Stepping Stones and was assigned to work at one of the school district's school sites through this company.

The

complaint alleges that "[a]ll defendants employed or co-employed Plaintiff directly or indirectly." The Court must treat the allegations in the complaint as true on demurrer. Accordingly, Plaintiff has sufficiently alleged that moving Defendant was her employer. The Court overrules Defendant's demurrer.

Motion

to Strike

Defendant

moves to strike the claims for punitive damages on the ground that Plaintiff

cannot recover punitive damages from a public entity Defendant. Government Code

section 818 provides,

“notwithstanding any other provision of law, a public entity is not liable for

damages awarded under section 3294 of the Civil Code or other damages imposed

primarily for the sake of example and by way of punishing the defendant.” In

opposition, Plaintiff concedes that punitive damages cannot be stated against a

public entity and notes that the complaint limits the request for punitive

damages to “nongovernment entity defendants.”

As

Plaintiff’s complaint already states that it is seeking punitive damages

against only nongovernment entity defendants the Court need not strike the

claims for punitive damages. The Court denies the motion to strike.

CONCLUSION

The Court overrules Defendant’s demurrer.

The Court denies Defendant’s motion to

strike.

Defendant shall file and serve its answer

within ten days.

Defendant shall give notice.